

Rasheed Ahmad *versus* ***Additional District Judge
and 08 Others***

S.No. of order/proceeding	Date of order/Proceeding	Order with signature of Judge, and that of parties or counsel, where necessary
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Learned counsel for the petitioner has pressed this constitution petition on the sole ground that the judgment debtor namely Muhammad Hanif (the '*judgment debtor*') since has passed away, therefore, the petitioner who filed surety bond dated 27.03.2021, stood discharged from his liabilities; that the decree even otherwise can be satisfied from the estate of the deceased-*judgment debtor*.

3. Admittedly, the *judgment debtor* in his lifetime failed to discharge his liability under the *decree*, passed for maintenance allowance and dowry articles in favour of respondents No. 3 to 6. The death of *judgment*

debtor cannot in law release the surety from his obligation when there is no stipulation to that effect in the bond. Reference in this regard can be made to the cases titled “Laxman Versus Gorakhji” (A.I.R. 1920 Nagpur 275 (2)) and “Hashmali Versus V. Begwant” (A.I.R. 1922 Nagpur 112). This aspect was also examined by this Court in case titled “Zulfiqar Ali and Others Versus Liaqat Ali and Others” (PLD 2020 Lahore 350) wherein the same plea was declined in the following terms:-

“4. The emphasis of learned counsel for the appellants that the moment, Barash Ali, judgment debtor died for whom his clients became surety, their liability stood absolved was not well founded. This proposition has already been clinched by this Court in case reported as Maula Dad v., Wadhawa Singh and Others (AIR 1924 Lahore 428) wherein it was concluded that:-

...The surety rendered himself liable for any decree which might be passed against his principal and in consideration for his doing so the plaintiff dropped his proceedings against the very tangible sum of Rs. 1,400. The mere fact that the principal has since died does not absolve the surety from performing his contract, and, following Chandulal Dalsukhram v. Jehang-bhai Chhotalal (1). I find that there is no force whatever in the objection, and I dismiss the appeal with costs.”

4. No case of interference is made out. This petition, therefore, is dismissed in limine. No order as to costs.

(Sultan Tanvir Ahmad)
Judge

Announced in open Court on 17.03.2025
Approved for reporting

Judge

J.A. Hashmi/-